

Warsaw, December 30, 2022

Decision

ZSPR.440.963.2019

Based on Article 104 § 1 of the Act of June 14, 1960, the Code of Administrative Procedure (Journal of Laws of 2022, item 2000) in conjunction with Article 7 § 1 of the Act on the Protection of Personal Data of May 10, 2018 (Journal of Laws of 2019, item 1781), Article 5 § 1, Article 6 § 1, Article 17 § 1, and Article 58 § 2 letter c of the Regulation of the European Parliament and of the Council (EU) 2016/679 of April 27, 2016, on the protection of natural persons in relation to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation) (Official Journal of the EU L 119 of May 4, 2016, p. 1, Official Journal L 127 of May 23, 2018, p. 2, and Official Journal of the EU L 74 of March 4, 2021, p. 35), after conducting administrative proceedings regarding the complaint of Mr. T. D., residing in L., concerning irregularities in the processing of his personal data by A. Sp. z o.o. based in P. (previously in P.) – represented by (...) Mr. M. W., consisting of the refusal to delete his data regarding his phone number, the President of the Personal Data Protection Office orders A. Sp. z o.o. based in P. (previously in P.) to delete the personal data of Mr. T. D., residing in L., in the scope including his phone number.

JUSTIFICATION

The Personal Data Protection Office received a complaint from Mr. T. D., residing in L. (hereinafter referred to as the Complainant), regarding irregularities in the processing of his personal data by A. Sp. z o.o. based in P. (hereinafter referred to as the Company), represented by (...) Mr. M. W., consisting of the refusal to delete the Complainant's data regarding his phone number. The Complainant indicated that he approached the Company with a request to delete his phone number. The Company refused to fulfill the Complainant's request, citing technological limitations.

During the conducted explanatory proceedings in this matter, the President of the Personal Data Protection Office established the following factual state: The Company obtained the personal data of the Complainant, including his first name, last name, login, email address, postal address, phone number, and mother's maiden name, based on an agreement concluded with the Complainant for the provision of services via electronic means within the framework of the trading platform "A." administered by the Company, available at the address: [...] and the provisions of the Regulations accepted by the Complainant, in connection with the registration by the Complainant of an account on the aforementioned platform under the name (login) [...] on [...] April 2003 (evidence: explanations of the Company from [...] July 2019).

The Company indicated that it currently processes the personal data of the Complainant based on Article 6 § 1 letter b of the Regulation of the European Parliament and of the Council (EU) 2016/679 of April 27, 2016, on the protection of natural persons in relation to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation) (Official Journal of the EU L 119 of May 4, 2016, p. 1, Official Journal L 127 of May 23, 2018, p. 2, and Official Journal of the EU L 74 of March 4, 2021, p. 35), hereinafter referred to as Regulation 2016/679, i.e., for the purpose of performing the contract for the provision of services via electronic means (evidence: explanations of the Company from [...] July 2019).

The Company indicated that the personal data of the Complainant will be deleted when he terminates the contract with the Company; however, the Complainant's data will continue to be processed by the Company based on the legitimate interest of the Company, which is: pursuing claims related to the performance of the contract, fulfilling obligations arising from legal regulations, including in particular tax and accounting obligations, preventing abuse and fraud, and for statistical and archival purposes - after the expiration of the aforementioned data processing purposes, they will be automatically deleted by the Company after the retention period adopted by the Company, i.e., after 6 years from the end of the calendar year in which the Complainant terminates the contract with the Company (evidence: explanations of the Company from [...] July 2019).

The Complainant approached the Company with a request to delete his data regarding his phone

number and to indicate the legal basis for their processing by the Company (evidence: letter from the Complainant dated [...] February 2019). The Company refused to fulfill the Complainant's request, indicating that he provided his personal data to the Company voluntarily for the purpose of concluding a contract for the provision of electronic services, and the Regulations accepted by the Complainant require the provision of complete and accurate contact information and its updating when necessary, among other things, due to the use of this data by contractors during the finalization of transactions concluded by the Complainant and the lack of technological possibilities to delete the data (evidence: explanations of the Company from [...] July 2019).

The Company indicated that it has verified the applicable procedure and approach to deleting data in the event of receiving a request for data deletion and promptly considers requests in this regard, as a result of which the Complainant was informed that if he maintains his position regarding the deletion of his phone number, he is requested to contact the Company (evidence: explanations of the Company from [...] July 2019).

The complainant did not approach the Company with a renewed request for the removal of his personal data regarding his phone number, which is why the Company continues to process his data in this regard (evidence: explanations from the Company dated [...] June 2020). In this factual state, the President of the Personal Data Protection Office considered the following.

According to Regulation 2016/679, for the processing of personal data to be lawful, the controller is obliged to process personal data based on the grounds specified in Article 6 of Regulation 2016/679. The above provision states that processing is lawful, among other things, when: the data subject has given consent to the processing of their personal data for one or more specific purposes (Article 6(1)(a)), or processing is necessary for the performance of a contract to which the data subject is a party, or for taking steps at the request of the data subject prior to entering into a contract (Article 6(1)(b)), or when it is necessary for the purposes of the legitimate interests pursued by the controller or by a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular when the data subject is a child (Article 6(1)(f)).

In accordance with the principle of "data minimization," contained in Article 5(1)(c) of Regulation 2016/679, personal data should be adequate, relevant, and limited to what is necessary for the purposes for which they are processed. Limiting processing to necessary data means a quantitative limitation and shaping the scope of data processing so that only such personal data is processed without which the intended purpose of processing cannot be achieved. This is explicitly emphasized in Recital 39 of the preamble to Regulation 2016/679, according to which personal data should only be processed where the purpose of processing cannot reasonably be fulfilled by other means, and not "in advance."

Article 17(1)(b) of Regulation 2016/679 states that the data subject has the right to request the controller to erase their personal data without undue delay, and the controller has the obligation to erase personal data without undue delay if the data subject withdraws consent on which the processing is based according to Article 6(1)(a) or Article 9(2)(a) and there is no other legal basis for processing.

The Company obtained the complainant's personal data regarding his first name, last name, login, email address, postal address, phone number, and mother's maiden name based on the contract concluded with the complainant for the provision of services electronically within the framework of the trading platform "A." administered by the Company, available at the address: [...] and the provisions of the Regulations accepted by the complainant, in connection with the registration by the complainant of an account on the aforementioned platform under the name (login) [...] on [...] April 2003. The Company is entitled to process the complainant's data based on Article 6(1)(b) of Regulation 2016/679, i.e., for the purpose of performing the concluded contract for the provision of electronic services.

The Company is entitled to process the complainant's data, but not his phone number, based on

Article 6(1)(a) of Regulation 2016/679, i.e., his voluntary consent.

In the opinion of the President of the Personal Data Protection Office (hereinafter referred to as the President of UODO), the Company's argument that the complainant's phone number is necessary for the Company to fulfill the contract for the provision of electronic services, among other things due to the use of this data by the Company's contractors during the finalization of transactions concluded through the Company by the complainant, does not constitute a basis for processing this data. Since the complainant voluntarily provided the Company with his phone number, at the moment he submitted a request for the deletion of this data and thus withdrew his consent for the processing of this data by the Company, the Company did not have a legal basis for processing the complainant's personal data regarding the phone number, as referred to in Article 6(1)(a) of Regulation 2016/679, i.e., his consent. In the event of the need to contact the complainant, the Company has other data of the complainant - his first name, last name, residential address, and email address, which still allows the Company to communicate with the complainant, e.g., by sending electronic messages or using postal mail. The use of this data by the Company's contractors during the finalization of transactions concluded through the Company by the complainant lies within the will and interest of the complainant. Therefore, if he claims that processing such data is not necessary, his right to not have this personal data processed should be upheld.

In the opinion of the President of UODO, the lack of technological means to delete the complainant's data, as cited by the Company, does not constitute a basis for refusing to delete his data regarding the phone number. Since the Company obtained the complainant's phone number and entered it into the database, it should have the tools necessary to delete the data. Moreover, the Company itself indicated that after the situation initiated by the complainant, it verified the applicable procedure and approach to data deletion in the event of receiving a request for data deletion and promptly considers requests in this regard. Therefore, the Company should delete the complainant's data regarding the phone number, rather than directing him to inquire whether he maintains his position regarding the deletion of the phone number.

The complainant has not revoked their declaration of will regarding the request for the removal of the phone number.

In this regard, there are grounds for applying Article 58(2)(c) of Regulation 2016/679, which states that in the event of a violation of personal data protection regulations, the President of the Personal Data Protection Office (UODO) orders the controller or processor to comply with the request of the data subject arising from the rights granted to them under Regulation 2016/679. Given that the Company did not comply with the complainant's request and processes their data regarding the phone number without legal basis, there has arisen a necessary condition for the President of UODO to issue a decision ordering the Company to delete the personal data of the complainant concerning their phone number.

In this factual and legal state, the President of the Personal Data Protection Office has ruled as stated in the operative part.

The decision is final. Based on Article 7(2) of the Act of May 10, 2018, on the protection of personal data (Journal of Laws of 2018, item 1000) and in connection with Article 13 § 2, Article 53 § 1, and Article 54 of the Act of August 30, 2002, on proceedings before administrative courts (Journal of Laws of 2017, item 1369, as amended), the party has the right to file a complaint with the Provincial Administrative Court in Warsaw within 30 days from the date of delivery of this decision, through the President of the Personal Data Protection Office (address: Personal Data Protection Office, ul. Stawki 2, 00 – 193 Warsaw). The fee for the complaint is 200 zlotys. The party has the right to apply for legal aid, including exemption from court costs.

Print article

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Jan Nowak

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Łukasz Kaczmarczyk

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